

Chandakka @ Parvati vs Mallayya on 2 June, 2011

Bench: N.Kumar, Aravind Kumar

IN THE HIGH COURT OF KARNATAKA.)
CIRCUIT BENCH AT DHARWAD
DATED THIS THE 26th DAY OF JUNE, 2008.
PRESENT «> | oe
THE HON'BLE MR. JUSTICE N, "KUMAR.
AND"
THE HON'BLE MR.JUSTICE, ARAVIND KUMAR

MFA NO: 13 4100/2097.

BETWEEN:

Chandakka @ Parvati. |

W/o Mallayya Mathapati. :

Aged: 20 years,

Oce: Household

Rfo: C/a Basayya re

3/0 Gurupadayya Mathap: at!

R/o: Hallali-

Tq. Athani

District, Belgaum 7 ..APPELLANT

(BY. SRLK.B. ADHYAPAK & SRI.MOHAN T.KUL KARNI,
ADVOCATES)

~Mallayyva.

S/o Sidramavya Mathapati

7 ' cae

* AB0: : 25 Ve Ears,

- Occ: Agriculture,

R/o: Yakkundi,

Tq. & Dist: Bijapur RESPONDENT

_2- This MFA is filed under Section 19(1) of the Family Court Act, against the Judgment and Decree dated 30.08.2007 passed in MC No.4/2005 on the file. of Judge, Family Court, Bijapur, allowing the petition filed under Section 9 of Hindu - Marriage Act. for | restitution of conjugal rights, og This appeal coming on for orders this day, N. Kumar J., delivered the following: = JUDGMENT.

This petition is filed by the wife challenging the decree passed by the Family Court which directed restitution of conjugal rights. For the purpose of convenience, parties are referred to as per their rankings in the Family Court,

2. Petitioner Sri. Mallayya married respondent

-Gint-Chandalka @ Parvati at Yakkundi Village. They lived together for three months. [It was contended before Family Court that after respondent became "pregnant, she went to her parent's house without intimating petitioner or his parents. She used to quarrel quite often and she was wasting food materials and she did not take care of petitioner and his parents. When she came back from her parent's house she had undergone abortion. and when questioned she deserted the petitioner's company and flatly refused to come with him: - With the intervention of elders and well wishers, she came back to her husband's house and again she went back to her parent's house. She used to ask back gold and sarees given to her at the time of marriage. The Petitioner and his parents went to her house and requested her parents to send their daughter but she did not come back. Therefore he preferred a petition under Section 9 of Hindu Marriage Act for restitution of conjugal rights alleging desertion by his wife without any reasonable cause.

&. After service of notice, respondent appeared

-- stated filed detailed statement of objections. she denied that she used to visit her parent's house, without intimating her husband. It is her specific case that petitioner gave mental torture and created her with cruelty. It is the petitioner who deserted and sought for dismissal of the petition.

4. Petitioner got himself examined as PW1 and also examined two witnesses PW2 and PW3 and produced documents in support. On behalf of the respondent, she got herself examined as RW-1 and also examined one witness as RW-2. Trial Court on appreciation of entire evidence on record held, that respondent went to her parent's place without intimation to petitioner and had got herself abortion done -without consent of the petitioner and said plea further fact that she took back gold and sarees given to her at the time of marriage when she left to her parent's house also well established. The material on record discloses that there were some quarrels with regard to preparation of food on the ground of respondent/wife was not preparing the food in proper manner and she was wasting and in this regard there was some the company of petitioner. That is not the reasonable cause for the wife to desert her husband. "Therefore, Family Court allowed the petition and directed for restitution of conjugal rights. Challenging the said order, present appeal is filed. _

5. We have gone through the entire order and find except saying that husband and his parents were torturing her and she was unable to fulfill their demands which is also not substantiated, there is

no other. 'acceptable "evidence available on record and "nothing else "igs demonstrated for deserting her Husband. 'On the contrary, material on record shows "that marriage was conducted according to Hindu ~< custom, she lived with her husband and she became "pregnant and she went to her parent's house without i eh a ~& -

informing her husband and she has undergone abortion without informing her husband and. when. she returned to the matrimonial house she. WAS. questioned and there were certain quarrels. in. this:

regard. It is also noticed that when she left the -- matrimonial house, she has, take Th - Da ck gold ornaments and sarees give ri to - her" att he "tim e of marriage. This conduct of 'the responder é is certainly unacceptable an d hot ex pe cte dd c ea wife and such a person accu sing h u s ba nd a nd h is parents of mental torture, as rightiv observed by Family Court cannot be accepted. Quarre? between husband and wife on account of. preparation of food, serving of food, e wasting ef food. that by itself cannot constitute a ground for spouses' desertion and she would have to _adjust herself to her husband over a period of time veg os "heen es _ -- ed a a a waren 2 wc aa d an im cm pat ate and. this so called problem would get solved. Elders "sheuld properly advice, assist the parties to narrow . down their differences. Unfortunately they become party to the said acts vindictively and family ~ harmony is lost and it is because of illiteracy. -That also cannot be a ground for separating husband and. wife and on appreciation of entire record, we find Family Court applied its mind and rightly came. to a ' conclusion that so called desertion of her husbana by wife is not on any reasonable eause and therefore it was fully justified in. decveeing. the petition for restitution of conjugal rights. Said order is just and proper based on "ogent reasons. ~~ No ground to interfere. Appeée bis a ismi 88 & d - Sd/-

JUDGE S JUD: